

NAPCS Unionization Research — State — Charter Sector Overview

Delaware — PERB(DE) Jurisdiction — May 2026

NAPCS Unionization Research • May 2026 • Template v8.0

Section 1: State Overview

State	Delaware
Labor Board	PERB(DE) — Delaware Public Employment Relations Board (PERB)
Governing Law	14 Del.C. Chapter 40 — Public School Employment Relations Act (PSERA). All Delaware charter schools are public employers. PERB(DE) has exclusive jurisdiction. The NLRB has never claimed jurisdiction over a Delaware charter school. Card-check (majority authorization / BU determination without election) is available under PSERA — confirmed by Sussex Academy cert February 2026 (case 1521, BU Determination).
Federal NLRB Jurisdiction	PERB(DE) has exclusive jurisdiction. Federal NLRB does not apply.
Right-to-Work	NOT a Right-to-Work State — Delaware has no right-to-work statute. DE charter school employees are public employees under 14 Del.C. Chapter 40; PERB(DE) has jurisdiction. Union security provisions are standard in public-sector CBAs. (No right-to-work statute applies. All DE charter schools are public employers — NLRA and any RTW provisions are inapplicable.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	YES — Card-check (Majority Authorization / BU Determination without election) is available under 14 Del.C. Ch. 40. Sussex Academy certification February 2026 (case 1521) was a BU Determination — no election held, no vote tally. CSW, Odyssey, and Sussex Montessori cert methods require PERB(DE) FOIA confirmation.
Registry Sweep	COMPLETE — April 2026 (Registry v22 — PERB(DE) scan) — 23 charter schools searched
Research Window	May 2026 (initial research session)

Section 2: Charter Sector Landscape

Total charter schools in Delaware: 23 (Charter School Registry v50 (NCES/ELSI 2024-25; 23 open DE charter schools as of May 2026)). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
Total Unionized Charter Schools in Delaware	4	17.4%	100% of NAPCS-tracked DE charter schools are CONFIRMED. PERB(DE) jurisdiction — all DE charters are public employers (14 Del.C. Chapter 40). Card-check certification available — no election required.
Independently Organized (CONFIRMED)	4	17.4%	Charter School of Wilmington (C1096002) — DSEA/NEA, spring 2018. Odyssey Charter School (C1006003) — DSEA/OCSEA/NEA, fall 2018. Sussex Academy of Arts and Sciences (C1096003) — DSEA/NEA, cert date unknown (Gap: obtainable via PERB(DE) records request, case 1521). Sussex Montessori Charter School (C1096001) —

			DSEA/NEA, February 2026 (PERB case 1521, card-check).
No Labor Board Records Found	19	82.6%	No PERB(DE) records found for remaining 19 open DE charter schools. Registry sweep complete (April 2026). 0 non-NAPCS discoveries.
Total Charter Schools in Delaware	23	100%	Source: Charter School Registry v50 (NCES/ELSI 2024-25; 23 open DE charter schools as of May 2026).

Charter Sector Enrollment

Total Charter Enrollment	19,032 students — 13.4% of state K–12 enrollment (142,156 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	555 students in network-affiliated schools — 2.9% of total charter enrollment
Students in Organized Charter Schools	0 students documented
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses †	Organized in State	Total Enrollment
Freire Schools Collaborative	CMO	1	1	—	406
Great Oaks Charter School - Wilmington	CMO	1	1	—	149
TOTAL — All CMO/EMO Schools in Delaware		2		0 organized schools in network-affiliated charters	

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

2 CMO (nonprofit). Approximately 21 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Sector Overview

Findings are based on research as of May 2026.

1: Legal & Jurisdictional Framework 14 Del.C. Chapter 40 — Public School Employment Relations Act (PSERA). All Delaware charter schools are public employers. PERB(DE) has exclusive jurisdiction. The NLRB has never claimed jurisdiction over a
--

Delaware charter school. Card-check (majority authorization / BU determination without election) is available under PSERA — confirmed by Sussex Academy cert February 2026 (case 1521, BU Determination). Delaware is not a right-to-work state (Delaware has no right-to-work statute. DE charter school employees are public employees under 14 Del.C. Chapter 40; PERB(DE) has jurisdiction. Union security provisions are standard in public-sector CBAs.). PERB(DE) has exclusive jurisdiction. Federal NLRB does not apply to charter schools in Delaware. Card-check recognition is available under Card-check (Majority Authorization / BU Determination without election) is available under 14 Del.C. Ch. 40. Sussex Academy certification February 2026 (case 1521) was a BU Determination — no election held, no vote tally. CSW, Odyssey, and Sussex Montessori cert methods require PERB(DE) FOIA confirmation..

2: Charter Sector Structure

Delaware operates 23 open-enrollment charter schools, enrolling approximately 19,032 students. 2 charter management organizations and education management organizations operate in Delaware. The largest networks by campus count are Freire Schools Collaborative (1 campuses in state), Great Oaks Charter School - Wilmington (1 campuses in state). Approximately 21 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Delaware charter school labor relations have received limited but targeted press coverage, primarily through the Exceptional Delaware blog — the principal public record of Delaware charter organizing history. The blog documented the Charter School of Wilmington organizing campaign (spring 2018) and Odyssey Charter School campaign (fall 2018) in real time, providing granular detail on governance conflicts that drove staff organizing. No mainstream Delaware press (News Journal/USA Today Network) has covered DE charter labor relations in depth. The Sussex Academy February 2026 certification has not yet generated press coverage as of May 2026.

Stakeholder Communications

DSEA (Delaware State Education Association) is the sole organizing and communicating union in the DE charter sector. DSEA maintains a public website (dsea.org) and assigns UniServ Directors to each certified local. No public DSEA communications specifically addressing DE charter organizing strategy have been identified. The Odyssey Charter School Education Association (OCSEA) — the Odyssey local — appears to maintain its own communications separate from DSEA.

Legislative Context

Delaware PSERA (Public School Employment Relations Act, 14 Del.C. Chapter 40) governs all DE charter school labor relations. PERB(DE) administers the act. Key feature: card-check certification is available — formally a BU Determination by Majority Authorization. Sussex Academy's February 2026 certification (PERB case 1521) is the most recent DE charter certification event and the clearest example of the card-check pathway. Sussex Montessori's cert date is pending a PERB(DE) FOIA response — the UniServ assignment is confirmed via DSEA staff directory.

Section 6: Contract & CBA Access Registry

PERB(DE) public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
Charter School of Wilmington (C1096002)	Delaware State Education Association (DSEA/NEA)	Active Unknown — verify with DSEA or school	DSEA records request; school website
Odyssey Charter School (C1006003)	Odyssey Charter School Education Association (OCSEA) / DSEA/NEA	Active Unknown — verify with OCSEA or DSEA	OCSEA or DSEA records request; school website

Sussex Academy of Arts and Sciences (C1096003)	Delaware State Education Association (DSEA/NEA)	Pending first contract N/A — recently certified February 2026	DSEA records request; PERB(DE) case 1521
Sussex Montessori Charter School (C1096001)	Delaware State Education Association (DSEA/NEA)	Active (assumed) Unknown — cert date pending PERB(DE) FOIA	DSEA records request; PERB(DE) FOIA